

25NNCV09385 25NNCV09385

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#18 - SOFYA BOROUMAND vs VOLKSWAGEN GROUP OF AMERICA, INC.

Plaintiff's Motion for Attorney Fees is granted in part. Attorney fees and costs are awarded in the total amount of \$13,770.41.

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case to fix the fee at the fair market value of the legal services provided. (Ibid.) These factors include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award. (Ibid.)

In determining hourly rates, the Court must look to the "prevailing market rates in the relevant community." (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 100.) In making this determination, "[t]he court may rely on its own knowledge and familiarity with the legal market." (Ibid.)

The Court

determines that \$450.00-\$475.00 for counsel's work and \$200.00-\$225.00 for the paralegal's work represents a reasonable hourly rate.

As to the hours expended, the Court observes that some of the tasks billed are excessive. It is appropriate to reduce a fee award because of "a lack of efficiency in litigating the case and a lack of clarity in tasks performed." (See Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 256 ["Further, counsel's billing

entries demonstrate a lack of efficiency in litigating the case and a lack of clarity in tasks performed. This evidence supports the trial court's finding that plaintiff's counsel failed to act efficiently."]; Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 101 [a reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections]; Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448 [court may also consider whether the amount requested is based upon unnecessary or duplicative work].) The Court adjusts the requested fee amount by \$4,005.00. In making this determination, the Court finds that Plaintiff's counsel billed attorney fee rates for some clerical tasks and that certain billings were excessive.¿ This includes excessive billing for analyzing emails and drafting boilerplate documents.¿ The court finds the reasonable number of hours expended on this matter was 30.3 hours, at the hourly rates identified above.

The Court declines to apply a multiplier. (See Ketchum v. Moses (2001) 24 Cal.4th 1122, 1142 [use of counsel's qualifications and exceptional representation both in calculating hourly rate and in applying a multiplier amounts to "improper double counting" of factors].)

On the issue of costs, pursuant to Civil Code section 1794, subdivision (d), the Court finds the expenses, all associated with service and e-filing, are reasonable. Accordingly, the Court awards \$710.41 for recoverable costs.

Unless waived by the parties, Moving Party is to give notice.